

M/s Parihar Dugdh Avsheetal and Ice Plant v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 April 2019 · WRIT-C No. 13316 of 2019 · **Writ disposed of; petitioner relegated to clause 6.5 objection; coercive recovery stayed three weeks.**

HEADNOTE

A writ against recovery of disputed electricity arrears was disposed of without examining the bill. The consumer was left to file an objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with law, with a short stay of coercive action on the recovery citation.

FACTUAL SUMMARY

The petitioner, an ice plant, approached the Allahabad High Court against a recovery citation dated 25 July 2018. It had large electricity arrears and said it was willing to pay the correct amount. Poorvanchal Vidyut Vitran Nigam, Fatehpur, appeared through counsel and pointed to the Executive Engineer as the forum for a billing objection under the Supply Code. The writ was heard by a Division Bench and disposed of the same day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where the consumer disputes an electricity bill and faces recovery, the writ court may dispose of the petition by leaving the consumer to file an objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005, to be decided in accordance with law within a stipulated time, and may stay coercive action on the recovery citation for a short outer period pending that decision. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ against recovery of disputed electricity arrears was disposed of without examining the bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND QUANTUM OF ARREARS

The Court did not examine the bill or the recovery citation dated 25.07.2018 on merits. ¶ 1